Trustee's Objection to Confirmation of Chapter 13 Plan

United States Bankruptcy Court for the Fictional District of Westmarch
Case No. 26-40217-C13
Debtor: Dana R. Whitfield
Filed by: Morgan L. Petrosky, Chapter 13 Trustee
Date: April 10, 2026

The Chapter 13 Trustee objects to confirmation of the Debtor's plan dated March 2, 2026, for the following reasons.

1. Disposable income

The Trustee has not been able to reconcile the gross wages reported on Schedule I with the employer payment advices produced to the Trustee. The plan may not commit all of the Debtor's projected disposable income.

2. Treatment of the Harborline Auto Finance claim

Schedule D states that the 2021 sedan was purchased June 14, 2024, within 910 days before the petition date. The plan limits the Harborline Auto Finance secured claim to the collateral value of $11,200.00. The Trustee objects to that treatment; the full claim of $14,850.00 must be paid as secured.

3. Missing tax return

Section 9 of the plan states that the Debtor's 2025 federal income tax return is filed as Exhibit C. Exhibit C was not attached to the plan and has not been provided to the Trustee.

Relief requested

The Trustee asks the Court to deny confirmation unless the Debtor files an amended plan resolving these objections and provides the 2025 federal income tax return.

Notice of hearing

A hearing on confirmation and on this objection will be held on May 14, 2026 at 9:30 a.m. in Courtroom 3B.

Signed: Morgan L. Petrosky, Chapter 13 Trustee